



Notification Waiver Determination

New Forests Australia New Zealand Landscapes and Forestry Fund – Benditi Pastoral

Acquisition	ANZLAFF Sub 2, through its trustee The Trust Company Limited, (the Purchaser) applied for a notification waiver in respect of its proposed acquisition of the remaining 50% of shares in Benditi Pastoral Co Pty Ltd (Benditi Pastoral) from Benditi Holding Co Pty Ltd, as trustee for the Benditi Holding Co Trust (the Vendor), as described in the transaction documents provided as part of the application (the Acquisition). The Vendor granted the Purchaser a Call Option under a Call and Put Option deed dated 4 December 2025 to acquire all of the remaining shares it holds in Benditi Pastoral. The parties entered into the deed simultaneous to ANZLAFF Sub 2 acquiring an initial 50% of the shares in Benditi Pastoral.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	20 July 2026

Parties to the Acquisition	The acquirer, ANZLAFF Sub 2 is a sub-trust of New Forests Australia New Zealand Landscapes and Forestry Fund (ANZLAFF), which invests in a diversified portfolio of forestry and agricultural land assets and associated processing assets. Both trusts are administered by professional trustee companies, The Trust Company Limited and The Trust Company (Australia) Limited respectively (subsidiaries of Perpetual Limited). ANZLAFF and ANZLAFF Sub 2 are managed by New Forests Asset Management Pty Limited (NF Management). NF Management is a wholly owned subsidiary of New Forests Pty Limited (New Forests), which is a global investment manager focused on nature-based real assets and natural capital strategies. New Forests holds an interest in, and manages (via a subsidiary), a pastoral beef grazing enterprise comprising several stations in the Kimberley region of WA. Benditi Pastoral operates a beef cattle grazing enterprise near Yarrowitch and Walcha, in the New England region of NSW. This involves the breeding, growing and finishing of beef cattle, as well as the management of the cattle herd and associated land and infrastructure.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is very small horizontal overlap between ANZLAFF Sub 2 (and its connected entities) and Benditi Pastoral in the production of cattle in Australia, and the increase in its share of supply arising from the Acquisition would be small. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act